

15	24-01417629 <i>Sullivan vs. Kazerooni</i>	Motion to Set Aside/Vacate Default and Judgment Defendant Sima Kazerooni’s Motion to Vacate Default Judgment is GRANTED in part and DENIED in part. Defendant Sima Kazerooni, in pro per, moves for an order vacating and setting aside the default and default judgment entered in this action on January 30, 2025, pursuant to Code of Civil Procedure section 473(b). Defendant also seeks a stay pending resolution of the Fee Arbitration. If an action is dismissed as the result of “mistake, inadvertence, surprise or excusable neglect,” plaintiff can move to set aside the dismissal under Code of Civil Procedure (CCP) section 473(b). Discretionary relief under section 473(b) is available to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (CCP, § 473(b).) Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (Austin v. Los Angeles Unified School Dist. (2016) 244 Cal.App.4th 918, 929 [cleaned up].) A motion for relief under section 473(b) “shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted” (CCP § 473(b).) However, this requirement is not jurisdictional; substantial compliance may suffice. (Carmel, Ltd. v. Tavoussi (2009) 175 Cal.App.4th 393, 403 [finding substantial compliance where counsel offered proposed answer at motion hearing rather than serving it with moving papers].) A motion for discretionary relief must be made “within a reasonable time but in no instance exceeding six months after the judgment, dismissal, order, or proceeding was taken.” (CCP § 473(b).) The motion is timely. The Court entered Defendant’s default and default judgment on 1/30/25. Defendant filed the instant motion within 6 months on 2/13/25. Defendant also submitted a copy of her proposed Answer. (Kazerooni Decl., Ex. B.) Defendant argues her failure to appear in the action within the period prescribed by law was due to a bona fide misunderstanding of the procedural requirements. Within the context of section 473(b) excusable neglect has been found when the party is unaware of the duty to appear or respond. (See, e.g., Elston v. City of Turlock (1985) 38 Cal.3d 227, 234, superseded by statute on other grounds [“an attorney states that he was unaware of his duty to appear or answer because his employees’ misplaced papers or misinformed him as to the relevant date, relief is routinely granted.”].) Relief under section 473(b) may be granted for a mistake of law. (See Waite v. Southern Pac. Co. (1923) 192 Cal. 467, 471.) “The issue of which mistakes of law constitute excusable neglect presents a fact question; the determining factors are the reasonableness of the
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		misconception and the justifiability of lack of determination of the correct law Although an honest mistake of law is a valid ground for relief where a problem is complex and debatable, ignorance of the law coupled with negligence in ascertaining it will certainly sustain a finding denying relief.” (A & S Air Conditioning v. John J. Moore Co. (1960) 184 Cal.App.2d 617, 620.) Here, Defendant states in her supporting declaration that on or about October 18, 2024, she filed a Notice of Stay in connection with pending Fee Arbitration proceedings. (Kazerooni Decl., ¶ 4, Ex. A.) Defendant, representing herself in this matter, did not file an Answer because she mistakenly believed that the Notice of Stay eliminated the need for an Answer. (Kazerooni Decl., ¶ 4.) On January 30, 2025, Defendant looked at the Docket and realized that on or about January 22, 2025, Plaintiff filed an Application for Default Judgment. (Kazerooni Decl., ¶ 5.) Thus, Defendant did not learn of the requirement to file an Answer until January 30, 2025, when she became aware that the default judgment had been entered. (Kazerooni Decl., ¶ 6.) Upon learning of the error, Defendant promptly filed an Answer on January 30, 2025, but it was rejected by the Court since a default judgment had already been entered against Defendant. (Kazerooni Decl., ¶ 7, Ex. B.) These facts adequately establish excusable neglect and mistake of law, as well as Defendant’s diligent conduct upon learning of her error. Plaintiff has not filed an opposition. “The failure to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits.” (Rules of Court, Rule 3.1342(b); see also DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”].) With respect to the requested stay, Defendant provides no legal authority or analysis to support the requested stay. The motion is GRANTED in part as to the request to vacate the default and default judgment and DENIED in part as to the requested stay.
16	22-01276965 <i>T-Mobile West, LLC vs. Newport Towers Homeowners Association</i>	1) Joinder 2) Motion for Bifurcation
17	21-01183751 <i>Vrooman vs. Macy's Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendants Macy’s Inc. and Benefit Cosmetics’ Motion for Summary Judgment is GRANTED. Negligence requires duty, breach of the duty, causation, and damages. (<i>County of Santa Clara v. Atlantic Richfield Co.</i> (2006) 137 Cal.App.4th 292, 318.) “The defendant has shown that the plaintiff cannot establish at least one element of the cause of action by showing that the plaintiff